

Texas WIC Health and Human Services Commission

Effective July 1, 2025

Policy No. QA:03.0

Accelerated Monitoring Review

Purpose

To assist a Local Agency (LA) to gain and maintain compliance with federal regulations, state and local policies, and procedures.

Authority

7 CFR §246.19

Policy

The LA may be placed on Accelerated Monitoring Review (AMR) status if they have significant findings during a State Agency (SA) Quality Management Branch (QMB) monitoring review, does not complete or comply with the Corrective Action Plan (CAP), does not complete, or comply with the follow-up CAP review, or has significant repeated findings from review to review.

Definitions

Significant Findings – Includes but is not limited to the severity of findings that cause operational deficiencies in the financial or clinical areas, financial mismanagement, serious issues that impede clients from being served efficiently, significant internal contract deficiencies, or fraud, waste, or abuse.

Probationary Status – The period in which the SA determines whether the LA is meeting contractual requirements or should have the contract terminated.

Procedures

- I. The SA QMB team determines if AMR is the appropriate level of monitoring for the LA based on the significant findings in the biennial review.
 - A. The SA QMB team notifies the LA of its placement on AMR in the letter of closure.

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- B. The SA QMB team will work with the LA to create a plan for compliance.
 - C. The AMR review will be conducted approximately 3-6 months after the LA is placed on AMR, or as the SA determines appropriate per the findings.
 - D. The SA QMB team determines what will be reviewed during the AMR. Criteria that are out of compliance or significant during the initial review will be assessed during the AMR. The SA QMB team will assess other criteria as necessary.
- II. The SA QMB team will communicate with the LA concerning the details of the AMR.
- A. The AMR may require an offsite and/or an onsite review.
 - B. A CAP will be issued, if necessary. The CAP will be sent 10 days after the exit conference. The LA will send the completed CAP to the SA within 14 days. The LA will have up to 60 days to complete all required actions. Multiple CAPs may be sent to the LA depending on the LA responses and documentation provided. The same timeframes apply.
 - C. The SA QMB team will send an email letter of closure and place them on the routine review cycle when the LA is in compliance.
- III. If the SA QMB team determines the LA is still out of compliance:
- A. The SA QMB team will discuss the next steps with the Business Support and Operations (BSO) Director and WIC Director, then notify the LA of the next steps.
 - B. The SA will communicate with the LA about the SA next steps every 30-60 days.
 - C. The SA QMB team will work with the LA to mitigate areas of noncompliance.
 - D. If the SA QMB team determines that the LA has not come into

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compliance, the LA shall be notified of the SAs decision of next steps within 30-60 days. Steps may include, but are not limited to:

1. Additional SA monitoring, outside of the review process.
2. Additional AMR
3. Reclaiming of LA WIC funds
4. Probationary status
5. Contract termination.